

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

June 5, 2026

#	Case Name	Tentative
1.	Sampson vs. SZ Orland Park, LLC 26-01554313	Motion to Appear Pro Hac Vice Plaintiffs Jamal Sampson, individually and as Parent and Legal Guardian of Josiah Sampson and Alexis Clark, Individually and as Parent and Legal Guardian of Josiah Sampson's application to admit Counsel Clell C. Warriner, IV as counsel pro hac vice is GRANTED. (Cal. Rules of Court, Rule 9.40.) Plaintiff has filed a valid proof of service of the continued hearing date, pursuant to the Court's 4/23/26 minute order. Plaintiff has complied with the substantive requirements of Cal. Rules of Court, Rule 9.40.

		THIS RULING IS FINAL. Moving Party shall provide notice.
2.	Delgadillo vs. General Motors, LLC 25-01481736	Motion to Compel Deposition (Oral or Written) Defendant General Motors LLC’s Motion to Compel Plaintiff’s Deposition and the Imposition of Sanctions is GRANTED. (Code Civ. Proc., § 871.26.) Code of Civil Procedure § 871.26 provides that: “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents,” including “[t]he plaintiff.” (Code Civ. Proc. § 871.26, subd. (c).) Here, Plaintiff did not appear for his deposition within in the 120 days, and did not provide alternative dates for his deposition, as requested by GM. Plaintiff argues GM is barred from compelling his deposition because it did not complete the deposition within 120 days of the filing of its demurrer. But this argument is specious. The reason the deposition was not completed is because Plaintiff did not appear at his deposition or provide alternative dates. Although Section 871.26 is silent on any deadline or procedure in which to file a motion to compel compliance, the court has authority to hear this matter. (See <i>Chavez v. Superior Court</i> (2024) 99 Cal.App.5th 165, 180 [gaps in statutes due to legislative silence “may be filled by courts through the exercise of their inherent authority in the absence of a clear legislative intent to the contrary that goes beyond the silence itself”].) To force GM to re-notice Plaintiff’s deposition and again attempt to schedule his deposition would negate the reason behind the enactment of Section 871.26 – to streamline and expedite the lemon law litigation process. Accordingly, the motion is GRANTED. Plaintiff is ordered to appear at his deposition by July 31, 2026. Further, GM’s request for sanctions against Plaintiff’s counsel is GRANTED in the amount of \$1,500 for failure to comply with CCP § 871.26(c).) Plaintiff has failed to demonstrate “good cause” for his non-compliance. Moving Party to give notice of this ruling.

3.	Gallagher vs. Razavi 25-01522835	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production These Motions are CONTINUED to June 26, 2026 , to be heard with the motion already on calendar for that date. THIS RULING IS FINAL. Clerk to give notice.
4.	Sneary vs. Gauntlet Holdings LLC 21-01220042	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories WITHDRAWN on June 2, 2026.
5.	Powell vs. Daryani 25-01526978	Demurrer to Complaint VACATED as MOOT based on Filing of FAC. Demurrer to FAC will be heard on July 24, 2026
6.	Blain vs. Ayers 23-01361840	Motion for Protective Order The hearing for Plaintiff's motion for protective order is VACATED, as the Court has granted responding Defendant's ex parte application seeking an order permitting them to invoke the arbitration agreement. (See Minute Orders dated 3/10/26 (ROA 406) [granting RE/MAX Defendants' ex parte request] and 11/3/25 (ROA 376) [Granting Defendant Pillsbury's Motion to Compel Arbitration and providing "If the REMAX Defendants choose to contend there is a risk of conflicting rulings between the arbitration and court action, then REMAX defendants may promptly, seek to have Plaintiffs' remaining claims against the REMAX Defendants referred to arbitration. The REMAX Defendants may raise this issue via ex parte application, in light of the fast-approaching trial date...].) Since Plaintiff's claims against Pillsbury and REMAX are all part of the arbitration proceeding, the remainder of this matter is STAYED pending arbitration. (See Code Civ. Proc. §1281.4.) Since the court has granted the REMAX Defendants' ex parte application to compel Blain to pursue his claims against them in the arbitration proceeding, the matter is stayed pending the outcome of the arbitration, and there is no basis to hear Plaintiff's motion for protective order.

		On the Court's own motion, the ADR Review Hearing and Status Conference scheduled for July 30, 2026, is CONTINUED to October 8, 2026, at 9:30 a.m. in Department C12. Status Report due by September 24, 2026. THIS RULING IS FINAL. Clerk to give notice.
7.	Fadly vs. Hi-Tech Builders, Inc. 24-01440345	Motion to Expunge Mechanics Lien The Court has considered the extensive briefing submitted in connection with this motion, including the supplemental briefings filed after the original April 17, 2026, hearing date. The Court notes that the briefing history included repeated late filings by Hi-Tech, which unnecessarily complicated the Court's review. Having considered the record, the Court affirms its original tentative ruling posted for the April 17, 2026, hearing date. Plaintiff Bradley Fadly's motion to expunge the mechanic's lien filed by defendant Hi-Tech Builders, Inc. is GRANTED. Hi-Tech has not made a sufficient evidentiary showing, on this record, to establish the validity, enforceability, and amount of the lien. Hi-Tech has not made a sufficient evidentiary showing that establishes the validity, enforceability, and amount of the claimed lien. Hi-Tech's supplemental opposition relies largely on attorney arguments and conclusory assertions that work was performed and that invoices, ledgers, receipts, change orders, and subcontractor payments support the lien. However, to this Court, Hi-Tech has not presented persuasive competent evidence adequately establishing the amount claimed or showing that the lien is enforceable in the amount recorded. The mechanic's lien against the property owned by Fadly, recorded as Document No. 2024000219904, in the official records of the Recorder's Office of Orange County on or about August 27, 2024, by Defendant and Cross-Complainant Hi-Tech Builders, Inc. is Expunged and released from the property. This ruling is without prejudice to Hi-Tech's ability to pursue its non-lien claims in the underlying action.

		Finally, the Case Management Conference is VACATED. The jury trial date of June 25, 2027, remains. Fadly to give notice.
8.	Fidelity National Title Insurance Company vs. Cal-Tex Acquisition IV, LLC 23-01352435	Motion for Summary Judgment and/or Adjudication Plaintiff Fidelity National Title Insurance Company’s motion for summary judgment, or alternatively, summary adjudication, is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Summary adjudication is denied because moving party’s separate statement does not “separately identify ... <u>[e]ach cause of action</u> ... that is the subject of the motion,” or “[e]ach supporting material fact claimed to be without dispute <u>with respect to the cause of action</u> ... that is the subject of the motion.” (Cal. Rules of Court, Rule 3.1350, subd. (d); emphasis added; see also <i>Cadlo v. Owens-Illinois, Inc.</i> (2004) 125 Cal.App.4th 513, 523 [court’s discretion to deny summary adjudication based on failure to comply with separate statement requirements].) Moving party’s requests to consider its “Amended Separate Statement” filed with the Reply (ROA 198), and/or to continue the hearing for a response, are DENIED. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new arguments / evidence presented for the first time on Reply are not considered, unless the opposing party has notice and an opportunity to respond]; Code Civ. Proc., § 437c, subds. (a)(2) [motion for summary judgment / adjudication requires 81 days’ notice], (a)(3) [hearing must be within 30 days of 9-4-26 trial absent good cause, not present here]; <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1262 [“trial courts do not have authority to shorten the minimum notice period for summary judgment hearings”].) Summary judgment is denied due to triable issues regarding causation and damages, which are essential elements of each cause of action in moving plaintiff’s First Amended Complaint. (Code Civ. Proc., § 437c, subd. (p)(1) [burden].) As to the 1st cause of action for breach of [implied] contractual indemnity and 2nd cause of action for breach of contract for benefit of third person, moving plaintiff’s evidence indicates the existence and breach of an indemnity obligation on defendants’ part, based on defendants’ execution of an “Owner’s Declaration” and “Owner’s Affidavit (Commercial)” denying knowledge of any “pending court action affecting the title,” and/or any “persons or entities that assert an ownership interest in the Land” (Exs. J and K to moving papers), despite knowledge of a pending action entitled <i>NQR Corp. v. Caltex Acquisition IV, LLC</i>, Orange County Superior Court Case No. 2020-

01159135 [“NQR Action”], which included a claim for specific performance arising out of a prior alleged purchase contract and failed sale of the subject property. (*Bailey v. Safeway, Inc.* (2011) 199 Cal.App.4th 206, 212 [indemnity elements]; *Four Star Electric, Inc. v. F & H Construction* (1992) 7 Cal.App.4th 1375, 1379 [“an indemnitee seeking to recover on an agreement for indemnification must allege the parties' contractual relationship, the indemnitee's performance of that portion of the contract which gives rise to the indemnification claim, the facts showing a loss within the meaning of the parties' indemnification agreement, and the amount of damages sustained”]; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [breach of contract elements]; Moving Party Separate Statement, Fact Nos. 3 [NQR Action filed 9-4-20], 4 [responding parties’ 9-14-20 appearance in NQR Action], 6 [10-22-20 motion to expunge Lis Pendens 1], 15 [“Owner’s Declaration” dated 4-14-20], 18 [failure to disclose], 20 [“Owner’s Affidavit (Commercial)” dated 4-19-21], 21-23 [MP reliance], 28-31 [intervention in NQR Action and settlement with NQR], and evidence cited in support thereof.)

However, there are triable issues as to causation, and the extent of plaintiff’s damages incurred in connection with the NQR Action.

[W]hen the indemnitee settles without trial ... the indemnitee must show the liability is covered by the contract, that liability existed, and the extent thereof. The settlement is presumptive evidence of liability of the indemnitee and of the amount of liability, but it may be overcome by proof from the indemnitor that the settlement was unreasonable (e.g., unreasonable in amount, entered collusively or in bad faith, or entered by an indemnitee not reasonable in the belief that he or she had an interest to protect). (*Peter Culley & Associates v. Superior Court* (1992) 10 Cal.App.4th 1484, 1497; emphasis added.)

While moving party’s evidence of settlement creates a rebuttable presumption of responding parties’ liability and amount thereof (*Id.*), responding parties have presented evidence sufficient to rebut this presumption, and accordingly create triable issues of material fact as to the essential elements of causation and damages; specifically, evidence disputing not just the validity of Lis Pendens 2, but NQR’s claims generally, due to NQR’s own failure to comply with numerous aspects of the parties’ agreements regarding the subject property, including failure to provide financial information sufficient for Cal-Tex to serve as lender, and failure to make timely escrow deposits. (Defendants’ Separate Statement, Response to Fact Nos. 30, 31, 35-40, as well as Additional Fact Nos. 50 and 52, and evidence cited in support thereof.) This is sufficient to rebut the presumptions established by MP’s settlement in the NQR Action, as such evidence

creates triable issues as to whether the “settlement was unreasonable.” (*Peter Culley & Associates v. Superior Court*, *supra* at 1497.)

The same triable issues as to causation and damages, which are also essential elements of plaintiff’s other causes of action, likewise defeat the motion as to plaintiff’s remaining claims. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [intentional misrepresentation elements]; *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173-174 [negligent misrepresentation elements]; *Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231 [unjust enrichment may be construed as quasi-contract claim seeking restitution]; *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238 [unjust enrichment elements].)

Moving party’s request for judicial notice is GRANTED, limited to the fact that the documents were recorded, but not of the truth of their contents. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; *Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117 [“the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein”].)

Responding defendants’ request for judicial notice is GRANTED. (Evid. Code, § 452, subd. (d) [court records].) However, “while courts are free to take judicial notice of *the existence* of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (*In re Vicks* (2013) 56 Cal.4th 274, 314; emphasis in original; internal citation omitted.) The truth of matters in court records is ordinarily limited to “documents such as orders, statements of decision, and judgments.” (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, FN 7.)

Moving party’s request for judicial notice submitted with the Reply is DENIED, as defendants have not had an opportunity to respond. (Evid. Code, § 453, subd. (a) [“The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and ... [g]ives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request”].)

Defendants shall give notice.

